

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF MISSISSIPPI
OXFORD DIVISION**

MATTHEW OLIVER REARDON

PLAINTIFF

v.

CIVIL ACTION No.: 3:22-cv-00050-SA-JMV

**THE STATE OF MISSISSIPPI;
LAFAYETTE COUNTY, MISSISSIPPI;
LAFAYETTE COUNTY SHERIFF'S DEPARTMENT;
LAFAYETTE COUNTY CHANCERY COURT;
COMMUNICARE
JOSEPH B. EAST
DAVID O'DONNELL
SHERRY WALL
JEFF BUSBY
DR. SANDY ROGERS
RACHEL ALCORN
SUSAN BEARD
JOHN DOE DEPUTIES (1-10), all in their individual
and official capacities**

DEFENDANTS

MOTION TO DISMISS

COMES NOW, the State of Mississippi ("State") and files this, its Motion to Dismiss all claims made against it, pursuant to Federal Rule of Civil Procedure 12. The State would show unto the Court, the following:

Federal Law Claims

1. The Plaintiff in his Complaint [Doc. 1] named the State of Mississippi as defendant and served process through the Mississippi Attorney General's Office.
2. The State has not consented to this lawsuit or to this Court's jurisdiction.

3. Nor has the State waived its sovereign immunity in this Court. The State thus enjoys Eleventh Amendment immunity from suit, except under narrow circumstances.

4. This Court should therefore dismiss the Plaintiff's alleged violations of federal law brought under 42 United States Code Sections 1983, 1985, and 1986, as this Court lacks jurisdiction, the State is not considered a "person" as contemplated by the sections, and none of the narrow circumstances such as the *Ex parte Young* exception or abrogation apply here.

5. This Court should dismiss the Plaintiff's alleged violation of federal law brought under 18 United States Code Section 242, as that relief is unavailable to private citizens.

6. Finally, another basis to dismiss all the Plaintiff's claims arising under federal law as he fails to state any claim or allege any facts against the State, on which this Court could grant relief.

7. As such, and for all the reasons set forth in the corresponding Memorandum of Law supporting this Motion, this Court should dismiss all the Plaintiff's claims arising under federal law.

State Law Claims

8. For the Plaintiff's alleged tort-based or state-law-based claims against the State, the Mississippi Tort Claims Act ("MTCA") governs those claims.

9. Under the MTCA, the State of Mississippi expressly preserved its Eleventh Amendment immunity for tort-based or state-law-based claims brought in this Court. Thus, the State of Mississippi is immune from suit in this Court for those claims.

10. Further, the Plaintiff failed to adhere to the notice and procedural requirements mandated by the MTCA.

11. As such, and for all the reasons set forth in the corresponding Memorandum of Law supporting this Motion, this Court should dismiss all the Plaintiff's claims arising under state law.

WHEREFORE, PREMISES CONSIDERED, the State respectfully requests this Court dismiss all claims made against it here with prejudice, where proper. The State also requests any other relief this Court deems just and proper.

RESPECTFULLY SUBMITTED, this the 29th day of June, 2022.

THE STATE OF MISSISSIPPI

BY: LYNN FITCH, ATTORNEY GENERAL
FOR THE STATE OF MISSISSIPPI

/s/ Drew D. Guyton
BY: DREW D. GUYTON, MS Bar No. 104451
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CERTIFICATE OF SERVICE

I, Drew D. Guyton, Special Assistant Attorney General for the State of Mississippi, do hereby certify that on this date I electronically filed the foregoing document with the Clerk of this Court using the Court's electronic filing system, which transmitted a copy to all counsel of record.

Further, I certify I have physically mailed – via USPS Certified Mail, postage prepaid, with a return receipt requested – a true and correct copy of the foregoing document in the above-styled and numbered cause to the following party/counsel:

Matthew Reardon
117 CR 401
Oxford, Mississippi 38655

Pro se Plaintiff

This the 29th day of June, 2022.

/s/ Drew D. Guyton
Drew D. Guyton